

25VECV06837 25VECV06837

County: los-angeles

Division: Civil Law and Motion

Department: B

Hearing date: 2026-08-28

Source URL: https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=NW%20%2CB%2C08%2F28%2F2026

Source SHA-256: 3cfe26c8ec02659fb5dbc914a2a9c509d00cf21f24edc565f53e258ede9bb6f0

Case Number: 25VECV06837 Hearing Date: August 28, 2026 Dept: B

Tentative Ruling

Givon v. Shushan, Case no. 25VECV06837

Hearing date August 28, 2026

Defendants'

Demurrer with Motion to Strike the Complaint

Plaintiff

Givon sues defendants Shushan, Libman and A.B.S. Industries, Inc. for breach of contract. Defendants demur and move to strike the entire complaint, or in the alternative the prayers for pre-judgment interest and attorney's fees.

Plaintiff opposes.

Defendants' Demurrer to the Complaint

"The

function of a demurrer is to test the sufficiency of the complaint as a matter of law." Holiday Matinee, Inc. v. Rambus, Inc. (2004) 118 Cal.App.4th 1413, 1420. A complaint "is sufficient if it alleges ultimate rather than evidentiary facts." Doe v. City of Los Angeles (2007) 42 Cal.4th 531, 550, but plaintiff must allege essential facts "with reasonable precision and with particularity sufficient to acquaint [the] defendant with the nature, source and extent" of the plaintiff's claim. Doheny Park Terrace Homeowners Ass'n., Inc. v. Truck Ins. Exchange (2005) 132 Cal.App.4th 1076, 1099.

Defendants

demur to the sole cause of action for breach of contract, arguing the complaint is fatally vague as to what contract plaintiff is suing under. The complaint alleges plaintiff "issued multiple loans to defendants, totaling approximately \$990,000." Compl., p. 3. The complaint does not attach any alleged loan documents nor enumerate how many loans were issued.

Plaintiff

argues he complied with the pleading requirements. To state a cause of action for breach of contract, plaintiff must allege: (1) existence of a contract, (2) plaintiff's performance or excuse for nonperformance, (3) defendant's breach, and (4) resulting damages. *Oasis West Realty, LLC v. Goldman* (2011) 51 Cal.4th 811, 821. Plaintiff argues the complaint alleges existence of the loans, plaintiff's performance by providing the loan funds, defendants' breach and damages of \$336,949.85. See Compl., p. 3. Plaintiff argues the particular terms of each loan need not be alleged, as plaintiff alleged a 9% interest rate and a one-year repayment deadline. *Id.*

Defendants

are entitled to allegations that contain sufficient specificity that they can understand under which loan(s) plaintiff brings his claim. See *Doheny Park Terrace Homeowners Ass'n., Inc.*, *supra*. The allegation that plaintiff made multiple loans to defendants requires plaintiff to delineate the terms of each loan, including whether each was written or oral, the amount and which defendant(s) was party to each loan.

These

are not evidentiary minutiae, as argued by plaintiff, but are basic details which must be pled, as plaintiff alleges more than one loan was made. As pled, it is uncertain how many loans were made, what portion of the alleged damages arises from each and what form each loan took. SUSTAINED with 15 days leave to amend.

Defendants' Motion to Strike the Complaint

As

the court sustained the demurrer with leave to amend, the motion to strike is MOOT.